

SEPARATE OPINION BY M. DE VISSCHER.

[*Translation.*]

Although concurring in the operative part of the judgment, I regret I am unable to accept some of its grounds, particularly in regard to two questions which are of considerable importance whether from a general point of view or from the point of view of the present case.

1.—The first point with which I disagree concerns the relations between the two diplomatic instruments upon which the Parties have relied. The judgment regards the Belgo-Bulgarian declarations accepting the Court's compulsory jurisdiction and the Treaty of June 23rd, 1931, as two separate and independent sources of jurisdiction. In my opinion they are two co-ordinated instruments; their respective provisions settle different questions; they are on that account fully consistent one with the other and should be applied not as alternatives, but concurrently.

Although, like the judgment and in conformity with the views of both Parties, I admit that the declarations accepting the compulsory jurisdiction of the Court remained in force during the current period of the 1931 Treaty, I do so because I believe that, when they signed that Treaty, the two States did not intend to establish a new source of jurisdiction. Bound in their mutual relations, as from March 10th, 1926, by an obligation to accept the Court's jurisdiction—an obligation with a longer term of application than that of the Treaty—why should they have suspended it for the pre-arranged term of five years assigned to the application of the Treaty and have substituted during that period a new source of jurisdiction for the pre-existing source, reverting by law to the latter on the expiry of the Treaty? The argument based upon the Treaty's later date would be decisive in favour of the creation of a new source of jurisdiction only if it were clearly proved that the subject-matter of the undertaking resulting from its Article 4 was really wider in scope than that of the undertaking arising out of the declarations accepting the compulsory jurisdiction of the Court. But, although it is true that Article 4—like the corresponding clause in the General Act of Geneva (Art. 17), which it reproduces—substituted for the definition of justiciable disputes contained in Article 36 of the Court's Statute the definition of those given in the arbitration conventions annexed to the Locarno Agreements (Oct. 16th, 1925), it cannot be said with certainty that the latter definition is

really any wider than that contained in the above-mentioned Article of the Statute. The definition in Article 36 is drafted in terms of objective law; that of the Locarno arbitration conventions in terms of subjective law. That difference does not allow us to assume any appreciable extension to the field of justiciable disputes. As for the clause in paragraph 2 of Article 4 (Art. 17 of the General Act, second sentence): "It is understood that the disputes referred to above include in particular those mentioned in Article 36 of the Statute of the Permanent Court of International Justice", the work preparatory to the General Act makes it clear that this clause was only included in the Act because the Locarno definition had been thought by some to be in fact more restrictive in certain respects than the definition in the Court's Statute.

The two other provisions of the 1931 Treaty upon which the Bulgarian Government bases its objection: Article 1, which prescribes diplomatic negotiations, and Article 3 concerning previous exhaustion of internal remedies, are in my opinion of quite another character. They do not strictly concern the jurisdiction of the Court. These provisions appear in Chapter 1 of the Treaty, entitled: "Pacific Settlement in general". They lay down two conditions which the Treaty regards as preliminary to any international procedure falling within the methods in question, namely, conciliation, arbitration and judicial settlement. The reference is no longer to the Court's jurisdiction, but to conditions upon which the Parties have agreed to allow recourse to that jurisdiction to depend.

The two conditions are applicable to the Belgian Government's Application; but, since the general spirit of the Treaty of June 23rd, 1931, is obviously in favour of extending methods of peaceful settlement in general, it is impossible to imagine that, when the contracting Parties embodied in treaty form the rules upon which these conditions were to rest, they intended to make them more binding in their effects than they are under ordinary international law. This remark applies especially to the local redress rule, which is formulated in Article 3 of the Treaty in the same terms as in Article 31 of the General Act of Geneva. The preparatory work of the Ninth Assembly (1928) of the League of Nations shows that the authors of the General Act intended, in this matter as in others, merely to unify the terms of the many previous arbitration conventions, which themselves had only given expression to a rule long sanctioned by international usage. This rule is in fact inscribed in Article 3 of the Treaty of June 23rd, 1931, in terms almost identical with those of Article 3 of the Treaty of arbitration and conciliation between Germany and Switzerland, dated December 3rd, 1921, the prototype of these conventions.

Finally, the conclusion to be drawn from a study of the various agreements mentioned above is that, in accordance, moreover, with the views of its most authoritative commentators, the General Act, in those of its provisions which apply to judicial settlement and which are reproduced in the 1931 Treaty, made little change in the system established by Article 36 of the Statute of the Court.

Understood in this sense, the combined application of the declarations accepting the Court's compulsory jurisdiction and of the 1931 Treaty cannot involve any contradiction, the jurisdiction of the Court continuing to be based upon the declarations, and the two conditions governing admissibility contained in Articles 1 and 3 of the Treaty being therein fixed in accordance with ordinary international law.

2.—The judgment appears to me to have interpreted Article 3 of the 1931 Treaty relating to the need of exhausting local remedies with a strictness which seems to be in keeping neither with ordinary international law, of which in my view this Article is the mere expression, nor with the general spirit of the Treaty. My observations shall be brief.

It is admitted that the rule requiring previous exhaustion of internal remedies shall be applied, not automatically, but having regard to the circumstances of the case and, more particularly, to any limitations which those circumstances may impose upon the effective nature of the remedy. The very text of the judgment delivered on March 16th, 1938, by the Bulgarian Court of Cassation shows that, in the view of that supreme tribunal, a number of apparently substantial grievances of the Belgian Company constituted grievances of fact which lay outside the Court's jurisdiction. In those circumstances it could only record the sovereign character in regard to them of the judgment given by the Sofia Court of Appeal.

A second circumstance is the attitude of the Bulgarian authorities immediately following the birth of the dispute. In his letter of August 3rd, 1937, to the Belgian Minister in Sofia, the Bulgarian Prime Minister and Minister for Foreign Affairs and Public Worship declared that "the matters in dispute between the Municipality of Sofia and the Belgian Electricity Company fall within the exclusive jurisdiction of the Bulgarian courts, which have already given their decision upon them". In the same letter the Bulgarian Government justified its decision to denounce the Treaty of June 23rd, 1931, on the ground that the Belgian Government intended to submit to the Permanent Court of International Justice "a dispute which falls within the competence of the Bulgarian courts".

Finally, it is established that the Belgian Company, being bound to exhaust the local remedies, did all that lay in its power to this end by having recourse, on June 23rd, 1937, to the exceptional means of an appeal to the Court of Cassation, and it is further agreed that the filing of the Belgian Application on January 26th, 1938, was determined by the imminent expiry of the Treaty which had been denounced by the Bulgarian Government and the benefit of which the Belgian Government was attempting to preserve. In these circumstances, was it necessary, on the basis of the Treaty, to declare the Belgian Government's Application irregular, because it preceded the judgment of the Bulgarian Court of Cassation? In my opinion, the circumstances briefly outlined above and the general spirit of the Treaty justified a less formal attitude towards a procedure whose only fault lay in its having been precipitated by the denunciation of the Treaty, while that denunciation, taking effect on February 4th following, deprived the Belgian Government, in advance, of the benefit of the appeal lodged by its national with the Court of Cassation and which alone, according to the argument of the Court's judgment, could lead to the "decision with final effect" required by Article 3 of the Treaty of June 23rd, 1931.

(Signed) DE VISSCHER.